IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Application for Bail under section 83 of the Poisons, Opium and Dangerous Drugs (Amendment) Act No. 41 of 2022.

Thalarambage Jagath Shaminda Fernando

Accused

CA Case No: BAL/539/2023
HC- Panadura
Case No: HC 4027/2020
MC- Moratuwa
Case No: B 239/2019

Thalarambage Sashika Dilhani Fernando,
No. 23, Dandeniyawatta, Dewala Road,
Katubedda, Moratuwa.

Petitioner

(On behalf of the Accused above-named)

Vs.

1. Hon. Attorney General,
   Attorney General's Department,
   Colombo 12.

Respondent

Before: **R. Gurusinghe J.**

&

M.C.B.S. Morais J.

Counsel: Priyantha Deniyaya for the Petitioner.

Jehan Gunasekara, SC for the Respondent.

Inquiry on: 21.03.2024

Decided On: **16.05.2024**

M.C.B.S. Morais J.

The petitioner is the daughter of the accused in the case bearing number HC 4027/2020 in the High Court of Panadura. It is apparent that the accused was arrested on or about 05th of February 2019 based on an information received by the Police and was produced before the Magistrate Court of Moratuwa and facts were reported under Case No. B/239/2019. The accused was indicted in the High Court of Panadura for being in possession and trafficking of 766.5 grams of 'Diacetylmorphine' alias 'Heroin' but the initial gross quantity was said to be 1002.0 grams.

The petitioner has made this application before us under section 83 of the Poisons, Opium and Dangerous Drugs (Amendment) Act, No.41 of 2022. As for the provisions of section 83(2),

> *"83(2) notwithstanding the provisions of sections 84 and 85, a person suspected or accused of an offence under subsection (1) of section 54A and section 54B-*
>
> *(a) of which the pure quantity of the dangerous drug, trafficked, imported, exported, or possessed is ten grams or above in terms of the report issued by the Government Analyst under section 77A; and*
>
> *(b) Which is punishable with death or life imprisonment, shall not be released on bail except by the Court of Appeal in exceptional circumstances."*

In, ***Ramu Thamotharampillai V. The Attorney General*** **[2004] 3 SLR 180**, it was held that;

> *"the decision must in each case depend on its own peculiar facts and circumstances"*

In, ***Labynidarage Nishanthi V. Attorney General*** **CA (PHC) APN 48/2014)**, said that;

"…the term 'exceptional circumstances' has not been explained or defined in any of the statutes. Judges are given a wide discretion in deciding in what creates a circumstance which exceptional in nature."

In, ***Welathanthrage Amila Sampath Botheju V. Attorney General*** **CA/BAL/0239/23**, it was held that;

"…a certain situation amounts to exceptional circumstances or not, has to be considered on a case-by-case basis, unique to each application before the court."

When applied in relation to the facts before us, in paragraph 08 of the petition, the petitioner pleads certain grounds which are alleged as exceptional grounds and they are as follows:

a) The accused has been in remand since 06.02.2019 over four and half years up to date.
b) The accused is suffering from acute kidney failure, the medical reports of which could not be obtained in due course to be annexed here to.
c) The wife of the accused has left the country for Kuwait to earn the living expenses for her two daughters, who are 15 years and 21 years respectively and both of them are in a dire need of parental care and protection.

It is apparent that the accused has been in remand custody for more than 63 months and there is nothing to indicate that the evidence of the first prosecution witness has been concluded yet. Therefore, it is apparent that there is a long delay which is unusual in general.

Though the petitioner has failed to submit the reports of alleged medical grounds and circumstances, it is apparent that he has been produced before medical officers time to time for ill health and according to the page number '34' of the High Court case record annexed and submitted as 'X', it is confirmed that the suspect has undergone a surgery for a kidney ailment.

According to the page number '58' of the High Court case record, this suspect has no previous convictions or pending cases.

Therefore, all of these are taken together I am of the view that this is a fit and proper case to grant bail.

Accordingly, bail is granted on the following conditions.

1. The accused should provide a cash bail of Rs. 200,000.
2. To provide two acceptable sureties. They must sign a bond of Rs. 2,000,000/= each.
3. The accused should report to the Officer in Charge of the Police Narcotics Bureau on every first Sunday of the month until the conclusion of the matter.
4. The bail should be canceled and/or confiscated upon this accused being arrested again in connection with another offence alleged to have been committed while on bail or on violation of any of the bail conditions.

5. To surrender the passport of the suspect if any, to the court. A travel ban is imposed on the accused. The controller of Immigration and Emigration is to be informed of the travel ban of the accused.
6. The permanent residing address of the accused should be provided to the court, and such residence should not be changed without leave of the court until the conclusion of the case.

Subject to the conditions set out above, bail is granted. The registrar of this court is directed to send copies of this bail order to the High Court of Panadura and the Officer in Charge of the Police Narcotics Bureau to inform due compliance of the suspect to the trial court.

Judge of the Court of Appeal

R. Gurusinghe J.

I agree

Judge of the Court of Appeal